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CMA Board Approval: 8/16/25
Effective date: 9/1/25

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COOLFONT MOUNTAINSIDE ASSOCIATION WATER AND SEWER – RESOLUTION 2025-06 SEPTIC SYSTEM MAINTENANCE POLICY

This Policy Resolution supersedes Policy Resolution 2024-04 of the same name, approved in July 2024. It includes information from the revised WV Title 150 Series 7 (3/10/25) and Series 5 (3/25/23).

WHEREAS, Title 150 Legislative Rule Public Service Commission, Series 7, Rules for the Government of Water Utilities ("WV 150CSR7") and Series 5, Rules for the Government of Sewer Utilities ("WV 150CSR5") create an obligation for owners for water and sewer services, empower the Board of Directors ("Board") of the Coolfont Mountainside Association Water and Sewer utility ("CMAWS") to invoice owners for services, and provide guidelines for enforcing the water and sewer obligation against owners by any lawful means;

WHEREAS, WV 150CSR5 Paragraph 6.8.2.b provides for utility discontinuance of service where conditions hazardous to life or property are found to exist on the customer's premises;

WHEREAS, CMAWS operates under the West Virginia Public Service Commission (PSC) Tariff: and

WHEREAS, the CMAWS believes it is in its best interest to adopt uniform procedures for the maintenance of privately-owned septic systems that are connected to or may impact the CMAWS wastewater treatment system;

WHEREAS, the hybrid nature of CMAWS effluent collection system creates a shared interest between owners and CMAWS regarding effluent treatment to ensure proper disposal of waste streams without contaminating the owner's property, CMA common properties, or the water sources in use by CMAWS and its neighbors, per the WV Source Water Protection Program and Well Head Protection Program;

NOW, THEREFORE, IT IS HEREBY RESOLVED CMAWS adopts the following Septic System Maintenance Policy:

I. Objectives

A. Ensure CMAWS can provide an efficient and effective central effluent collection system with minimal interference from owner owned and maintained septic systems.

B. Establish requirements for owner septic system maintenance and inspection schedules to ensure minimal impact to the CMAWS central effluent collection system, CMA common

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I. Objectives

A. Ensure CMAWS can provide an efficient and effective central effluent collection system with minimal interference from owner owned and maintained septic systems.

B. Establish requirements for owner septic system maintenance and inspection schedules to ensure minimal impact to the CMAWS central effluent collection system, CMA common

properties, and neighboring wells per the WV Source Water Protection Program and Well Head Protection Program.

C. Establish policy on assessments, charges, and/or fees to owners failing to properly maintain their septic system in accordance with CMA requirements which may negatively impact CMA grounds, ground water, or the CMAWS central effluent collection system, facilities, and equipment.

II. Overview

A. Property owners within the CMA are required to maintain their septic system in efficient and effective condition in accordance with the CMA and CMAWS rules, regulations, and policy, whether it be septic systems with leach fields or connected to the CMAWS central effluent collection system. If there is conflict between the CMA rules or regulations and this policy the most recent guidance takes precedence.

B. CMAWS and each owner are responsible for complying with federal, state, and local law and regulations applicable to septic systems and the CMAWS central effluent collection system. CMAWS may require owners with improved lots to connect to the CMAWS central effluent collection system as allowed by state law and WV PSC regulations to protect the natural environment.

C. Each owner is responsible for installation, maintenance, and repair of their sewage equipment and septic system on their property or shared properties as well as the customer service pipe. CMAWS is responsible for maintenance and repair of effluent lines starting at the point of service.

III. Owner Maintenance Requirements

A. To meet the maintenance requirements, each owner must:

1. Have their septic tanks pumped and inspected based on the following schedule:
   a) Quarterly water usage based on rolling four (4) quarter **average usage of less than 10,000 gallons** will require septic tanks to be pumped and inspected at least every five (5) years by a licensed septic system contractor.

   b) Quarterly water usage based on a rolling four (4) quarter average usage of more than 10,000 gallons will require septic tanks to be pumped and inspected at least every three (3) years by a licensed septic system contractor.

2. Provide a copy of the septic contractor's invoice and inspection report to CMAWS within thirty (30) days of service. Any deficiency in the owner's septic system noted by the contractor must be reported to CMAWS, in writing, within thirty (30) days.

3. Begin any corrective actions for deficiencies noted by the inspection within thirty (30) days of CMAWS notification or as agreed to, in writing, by CMAWS Operations Manager or Board. Owners must use a WV licensed septic system contractor.

4. Complete any corrective actions for deficiencies noted within sixty (60) days or as agreed to, in writing, by the CMAWS Operations Manager or Board.

5. Provide a copy of the contractor's invoice for corrective actions taken to CMAWS within thirty (30) days of completion of repairs.

B. Upon any change in ownership, or upon a significant increase in the use of a residence, provide CMAWS the results of an inspection by a WV licensed septic contractor regarding the septic system's rated size and ability to treat the waste stream of the expected occupancy of the residence based on WV 64CSR47, Section 6.4. If the inspection indicates the septic system is insufficient for the planned use of the residence, provide CMAWS with a written plan to install an adequately sized septic system for approval and, once approved, implement the approved plan prior to effecting the planned use of the residence.

C. Each owner is responsible for any failure of their septic system, whether or not connected to the CMAWS central effluent collection system. This includes but is not limited to repairing the owner's septic equipment and customer service pipe, as well as damage caused to the CMAWS system if the owner is deemed liable by CMAWS or their contracted representative. This provision extends to the cleanup and restoration of grounds, both private and common, to their natural state after repairs are completed.

IV. ENFORCEMENT

A. Each owner who is not in compliance with scheduled maintenance or notification requirements will be notified in writing by the CMAWS and will have 30 days to comply (i.e., have their septic system serviced and inspected or reply to concerns about their septic system). For owners failing to comply within 30 days, CMAWS may contract with a WV licensed septic contractor to service and inspect the owner's septic system. All costs incurred by such services will be assessed to the property owner with the addition of a $250 administrative fee/assessment or a fee as defined in the CMA Schedule of Fines, Fees, and Charges.

B. Any owner found to have fouled the CMAWS central effluent collection system, as determined by the CMAWS or their contracted representative, shall be liable for all costs associated with clearing the fouling from their respective septic system to the CMAWS central effluent collection point (i.e., a lagoon or pumping station) with the addition of a $500 administrative fee/assessment or fee as defined in the CMA Schedule of Fines, Fees, and Charges.

V. CMAWS Administration

A. The CMAWS Operations Manager, Board designee, CMAWS Committee or Board, in their sole determination, may decrease the period between septic system maintenance requirements based on a contractor's inspection report or fouling of CMAWS central effluent lines, to a period deemed appropriate and provided in writing to the owner by CMAWS.

B. CMAWS Operations Manager, Board designee, CMAWS Committee or Board,, may take action that could restrict the use of any property:

1. In violation of septic maintenance requirements;.
2. Fouling the CMAWS effluent system;
3. With any septic leakage on their property; and/or

4. With an inadequately sized septic system for residence occupancy..

C. The CMAWS Operations Manager, Board designee, CMAWS Committee or Board, will:

1. maintain records of owners' septic system specifications, location, and maintenance;
2. make notification to owners regarding reduced or extended maintenance period requirements;
3. submit owner maintenance interval appeals to the Board in a timely manner; and
4. submit to the Treasurer and/or bookkeeper all contractor invoices, assessments, and charges to be charged to the owner for non-compliance.

Change In Ownership Septic Inspection

Mail or email this form to CMAWS:

CMA Water & Sewer
PO Box 418
Berkeley Springs, WV 25411

CMAWS Email: coolfont.board@gmail.com

CMA Lot Number: _____ Owner Name: _____

Attached is the inspection of my residential septic system based on the Change in Ownership

The inspection reported a finding of:

☐ Septic system supports planned use per WV 64CSR47, Section 6.4.

☐ The septic system does NOT support the planned use per WV 64CSR47, Section 6.4.

My planned actions are: (State your planned actions and timeline here.)

_____

_____

_____

_____

_____

Owner Signature: _____

Owner Address: _____

Owner Phone Number: _____ Owner Email Address: _____

CMAWS Action: ☐ No Action Required ☐ Owner Plan Approved ☐ Owner Plan Rejected*

DACC Notified: Date _____ Email/Phone _____

Board Notified: Date _____ Email/Phone _____

CMAWS Signature/Name _____

CMAWS/Board Action:

☐ Inspection report received. No action required.

☐ Inspection report received. Owner plan approved.

☐ Inspection report received. Owner plan rejected.

*Rationale for rejection and steps to obtain approval:

_____

_____

_____

_____

_____

COOLFONT MOUNTAINSIDE ASSOCIATION
WATER AND SEWER - RESOLUTION 2025-06
SEPTIC SYSTEM MAINTENANCE POLICY

RESOLUTION ACTION RECORD

Duly adopted at a meeting of the Board of Directors held on: 8/16/25

Motion by: Iris Melton Seconded by: Dawne Holz

Title, Name	For	Against	Abstain	Absent
President, Steve Katz	X			
Vice President, Norm Rosenberg				X
Treasurer, Dawne Holz	X			
Secretary, Valerie Creason	X			
Director, Iris Melton	X			
Director, David Creason	X			
Director, Jack Wennersten				X

ATTEST:

Resolution effective date: September 1, 2025.

Valerie Lm Creason
Secretary

8/16/25
Date

Notice of Change in Septic System Maintenance Period

FROM: Coolfont Mountainside Association Water & Sewer
PO Box 418
Berkeley Springs, WV, 25411

TO: Name
Address
City, State Zip Code

DATE:

SUBJECT: Changed Septic Maintenance Period Notification

This letter serves as notification the CMAWS determined the septic system for Lot _____ requires septic system maintenance changed from the standard CMAWS five (5) year period. This finding is based on:

- ☐ The last maintenance report provided by a West Virginia licensed septic contractor.
- ☐ Fouling of the CMAWS central effluent collection lines.
- ☐ Determined lower or higher occupancy and/or water use rate.

The owner will now be required to have the septic system for this lot maintained and inspected by a West Virginia licensed septic contractor no less than once every _____ years, effective _____.

If you feel this action is in error, please contact the CMAWS Operations Manager or Committee to discuss. If, after discussion, you feel this action is unwarranted, you may appeal the decision to the CMAWS Board of Directors.

To file an appeal, send the below form to the CMAWS Secretary within 30 days of this notification, include a copy of this notification, state your rationale for the appeal and provide any supporting documents. The CMAWS Board will schedule a time for you to meet with them and discuss the matter, either in person or via teleconference. Failure to appeal within 30 days of notification or to appear at the appointed time will result in summary judgement against your appeal.

Sincerely,

CMA Water & Sewer

Septic Maintenance Period Appeal

Mail/email this form to the CMAWS Secretary at one of the addresses below:

CMA Water & Sewer
PO Box 418
Berkeley Springs, WV 25411

CMAWS Email Address: Coolfont.board@gmail.com

CMA Lot Number:

Owner Name:

Subject: Appeal of Reduced Septic Maintenance Time Period.

I request a meeting with the CMAWS Board of Directors to consider this appeal of the required septic maintenance period. Attached is a copy of the notification and any supporting documents. My rationale for appeal is:

Owner Signature: _____

Owner Address: _____

Owner Phone Number: _____

Owner Email Address: _____